

papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to meet and confer, Plaintiff sent Defendant a meet and confer letter on June 5, 2026.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney’s fees or other costs associated with bringing the motion. Sanctions should only be imposed for “reasonable” expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions was for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff’s Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The trial date of October 6, 2026 is confirmed.

9:00 a.m. – Review Hearings

ABREU VS. SIMMONS

CASE NUMBER: 25CV-0208617

This matter is on calendar for review regarding status of the case.. The matter is at issue and trial is scheduled for August 4, 2026. Jury fees have not been posted by either party. Therefore, the matter will proceed as a court trial. The Court notes that Plaintiff has not submitted a Request for Remote Appearance for the trial. Given Plaintiff’s status as an incarcerated litigant, on July 23, 2026, the Court issued an Order Regarding Remote Appearance and has ordered that CDCR produce Plaintiff for a remote appearance via WebEx. **An appearance by all parties is necessary on today’s calendar to confirm the trial and provide a time estimate.**

AMYOT VS. SILVERTHORN RESORT, INC.,

CASE NUMBER: 23CV-0203487

This matter is on calendar for a compliance hearing following final approval of a class action settlement. The Declaration of Garvin Brown provides that all payments have been made and that the amount of the uncashed settlement checks will be sent to the California State Controller’s Office on August 5, 2026. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for confirmation. No less than five court days prior to the hearing, Plaintiff shall provide evidence that the transfer to the State Controller’s Office occurred. **No appearance is necessary on today’s calendar.**

BELCHER VS. SHASTA COMMUNITY HEALTH CENTER

CASE NUMBER: 25CV-0208268

This matter is on calendar for a trial setting conference. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than February 17, 2027. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today’s calendar.**

BERG, ET AL. VS. U.S. BANK, ET AL.

CASE NUMBER: 24CV-0206475

This matter is on calendar for review regarding status of settlement or arbitration. Both parties filed status statements. The Court notes that Defendant moved to compel arbitration and that the matter was stayed pending arbitration on June 23, 2025, however, it appears that nothing has been done to actually arbitrate the matter. The

matter is continued to **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status of arbitration. The parties are ordered to file status statements no less than five court days prior to the review hearing. **No appearance is necessary on today's calendar.**

CRUZ VS. WINCO FOODS, LLC

CASE NUMBER: 24CV-0204817

This matter is on calendar for review regarding Answer to the Cross-Complaint and trial setting. The Court notes that Cross-Defendant Diamond Janitorial Services has not filed an Answer to the Cross-Complaint filed by Winco Foods, LLC on October 13, 2025 and Cross-Defendant Diamond Janitorial Company, LLC has not filed an Answer to the Cross-Complaint filed by TEC Services, LLC on January 26, 2026. A Summons did not issue for either Cross-Complaint. The matter will not be set for trial until the matter is at issue. **An appearance is necessary on today's calendar.**

DISCOVER BANK VS. MARCUZ

CASE NUMBER: 24CVG-01645

This matter is on calendar for review regarding status of judgment/dismissal. The Court notes that a CCP § 664.6 Stipulation and Order were returned by the clerk on July 9, 2026 due not containing original signature or being filed by fax. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of CCP § 664.6 Dismissal. Plaintiff is ordered to resubmit. The hearing will be vacated if a dismissal is on file prior to the next court date. **No appearance is necessary on today's calendar.**

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

This matter is on calendar to reset the hearing on Defendant's Motion for Summary Judgment. Defendant filed a status statement requesting a ruling on the motion as submitted. Plaintiffs did not file a status statement. The Court notes that trial in this matter is scheduled for August 25, 2026. Absent good cause being presented otherwise, the Court intends to set the matter for hearing on **Monday, August 17, 2026 at 8:30 a.m. in Department 63** with the Court finding good cause to hear the motion within thirty days of trial. The parties are ordered to meet and confer prior to the hearing regarding trial readiness and the hearing date on the motion. **An appearance is necessary on today's calendar.**

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

Tentative Ruling on Motion to be Relieved: Douglas B. Jacobs of Jacobs, Anderson, Cecil and Wieder, LLP moves to be relieved as counsel for Plaintiff James Jackson. CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d).

There is proof of service on file reflecting timely service on Plaintiff as well as Defendant's counsel. The address used for service on Plaintiff was confirmed within the last 30 days mail with return receipt.

As to the merits, a declaration must be filed that states in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1). Plaintiff's counsel has provided evidence that there is a breakdown in the attorney-client relationship such that continued representation is untenable.

The motion is **GRANTED**. Counsel provided a proposed Order that will be executed by the Court. Jacobs, Anderson, Cecil and Wieder, LLP will be relieved upon the filing of the Notice of Entry of Order. The matter